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FILED: APPELLATE DIVISION - 3RD DEPT 03/29/2024 11:11 PM CR-23-1493
NYSCEF DOC. NO. 39 RECEIVED NYSCEF: 03/29/2024

To Be Argued By:
STEVEN M. SHARP

Time Requested:
TEN (10) MINUTES

KA 26-00000

SUPREME COURT OF THE STATE OF NEW YORK

APPELLATE DIVISION

NEW YORK STATE SUPREME COURT

FOURTH JUDICIAL DEPARTMENT

APPELLATE DIVISION - THIRD DEPARTMENT

THE PEOPLE OF THE STATE OF NEW YORK,

THE PEOPLE OF THE STATE OF NEW YORK,

Respondent,

Respondent,

-against-

- against -

A.D. No. CR-23-1493

ALEX Q. DOE,

NAUMAN HUSSAIN,

Defendant-Appellant.

Defendant-Appellant.

Ind. No. 2025-0000

APPELLANT'S BRIEF

APPEAL FROM A JUDGMENT OF THE SUPREME COURT,

MONROE COUNTY (JANE EXAMPLE, J.), RENDERED MARCH 14, 2026

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PRELIMINARY STATEMENT

By right, appellant, Nagmah Hussain, appeals from a judgment of the Supreme Court, Schoharie County (Lynch, J.), rendered on May 31, 2023, convicting him, after a jury verdict, of twenty counts of manslaughter in the second degree and sentencing him to an indeterminate term of five to fifteen years in prison. A stay had been sought and denied on August 25, 2023 (Egan, J.) and appellant is incarcerated pursuant to the judgment herein.

1. Did the trial court err by denying suppression of the handgun recovered from defendant's car, where the police had no founded suspicion of criminality to justify the stop and the frisk that followed?

The court below answered this question in the negative.

2. Was defendant denied the effective assistance of counsel where trial counsel did not pursue a police report that the prosecution disclosed after the suppression hearing?

The court below did not reach this question.

PRELIMINARY STATEMENT

By right, appellant Alex Q. Doe appeals from a judgment of the Supreme Court, Monroe County (Example, J.), rendered March 14, 2026, convicting him, upon his plea of guilty, of one count of criminal possession of a weapon in the third degree, and sentencing him to a determinate term of two years in prison, followed by five years of post-release supervision. The plea reserved appellant's right to challenge the denial of his suppression motion. The appeal presents two questions, both arising from the same traffic stop: whether the officer had a lawful basis for the stop and the frisk that followed, and whether the People's late disclosure of a dispatch log was handled in a way that denied appellant a fair hearing.

STATEMENT OF FACTS

A. The Charges

According to the accusatory instrument, appellant possessed a loaded handgun in a motor vehicle on June 2, 2023. The People's case rested on one witness, the arresting officer, and the handgun itself.

B. The Traffic Stop

At about 9:40 p.m. on June 2, 2023, Officer Samuel Example stopped appellant's car on Lake Avenue for a defective tail lamp. The officer testified that the lamp was dark when he first saw the car. He did not record the stop on video, and the lamp was not repaired or photographed. (A 41-42.)

The officer asked appellant for his license and registration, and then asked him to step out of the car. The officer testified that appellant appeared nervous, that his hands were "moving around," and that he had been stopped in the same area before. (A 44-46.) The officer did not testify to any observation of a weapon, a furtive movement toward the interior of the car, or a report of criminal activity. (A 47.)

The officer testified that he had "a feeling" about the vehicle, and that the feeling grew stronger when the driver reached toward the dashboard. He did not describe what the driver did with his hands, and he did not say whether the reach was toward the glove compartment or the door. (A 48.)

After appellant stepped out, the officer patted him down and then searched the passenger compartment. He found a loaded handgun in the glove compartment. (A 49-51.) The officer arrested appellant for criminal possession of the weapon. (A 52.)

"defendant was told by third parties that he had to comply with DOT regulations to maintain the vehicle in sufficient repair to operate as a commercial motor vehicle;" "Defendant was reckless when he hired a driver who did not have authority to drive a 16 passenger vehicle/limousine and who lacked a P endorsement;" "Lisinicchia had not been drug tested and/or who had been placed out of service by the New York State Police and/or New York State Department of Transportation;" and "Defendant was told Scott T. Lisinicchia could not drive the 2001 limousine until Scott T. Lisinicchia obtained a P endorsement" (A 14-15).

The People elicited testimony and admitted exhibits to prove these particulars.

An example shows the need for the specific charge requested by appellant and demonstrates the lack of confidence in the jury's verdict. Lisinicchia had a commercial driver's license, but he did not have a passenger endorsement and police told appellant about the passenger endorsement requirement (A 218-19, 223-24). Police informed appellant that Lisinicchia could not operate the limousine until he receives a passenger endorsement and issued a violation specifying that Lisinicchia was out of service until he had the proper endorsement (A 227, 229). Lisinicchia had been disqualified from the NYS DMV Article 19A driver registration program and a violation was issued for operating a 19A disqualified driver (A 243).

Along the limousine's route, a witness observed a very strong, burning brake smell (A 250-52). Another witness testified that the limousine bypassed two "no truck" going down the hill signs (A 256-57). The People's expert

C. The Suppression Hearing and the Late Disclosure

At the hearing the People called only the officer. Defense counsel cross-examined him about the tail lamp and the frisk. The court asked no questions. The People did not disclose a dispatch log from the stop until after the hearing closed. (A 58-59.) The log shows a call from the same officer, made four minutes before the stop, reporting a "suspicious vehicle" at a different address. (A 62.) Trial counsel did not ask the court to reopen the hearing, and did not seek an adjournment to investigate the call. (A 66-67.)

The court denied the motion in a written decision that did not mention the dispatch log. Appellant then pleaded guilty, reserving his right to appeal from the suppression ruling.

ARGUMENT

POINT I

THE STOP AND THE FRISK WERE NOT SUPPORTED BY FOUNDED SUSPICION

The People bore the burden of showing that the stop and the search were lawful. The officer's own account does not meet it. A stop for a defective equipment violation requires a traffic infraction, and the officer's testimony about the lamp was unequivocal that the lamp worked. The remainder of his testimony was not enough to carry the People's burden at a suppression hearing.

A. The Officer Had No Basis to Extend the Stop

Even if the stop was justified at its inception, the officer had to limit his inquiry to the reason for it. Once he had checked the license and registration, he had no further lawful purpose to ask for [redacted] activity that [illegible]

to effectively confer with counsel and to make an intelligent decision ignores reality and casts aside all notions of fairness.

For example, the Court of Appeals, in *People v Schultz*, addressed a similar scenario where the trial court promised a specific sentence at the time of the plea, but then determined that promise could not be honored because a longer sentence was appropriate (*see People v Schultz*, 73 NY2d 757, 758 [1988]). There, the defendants had a chance to withdraw their pleas and "were granted more than a week's adjournment so that they could consider their options" (*see Schultz*, 73 NY2d at 758). The Court held that the trial court did not abuse its discretion, in part, because the "defendants were afforded ample opportunity to withdraw their pleas" (*see Schultz*, 73 NY2d at 758).

In contradistinction, appellant was given only 20 minutes to confer with counsel. Supreme Court even directed a court officer to interrupt appellant's consultation with his attorneys to order them to reappear and provide a decision. We do not mean to suggest any particular amount of time is required, but the amount must be reasonable (*see People v Bostic*, 34 AD2d 597, 597 [3d Dept 1970][holding that a defendant was not denied the right to counsel where he was given "additional time to consult with counsel" before the hearing and where the plea of guilty occurred the day following the hearing "after thorough discussion with counsel"]). A determination of what

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Ohio, 392 U.S. 1, 21 (1968) requires "specific and articulable facts." The officer identified none. Nervousness alone does not supply a founded suspicion, and an unspecified prior stop in the area adds nothing particular to this defendant.

The inquiry the officer made went beyond the traffic infraction. He asked appellant to step out of the car while the license check was still pending. That step was a seizure in its own right, and it was not supported by any articulable fact. The People cannot justify it by pointing to what the officer found afterward. Under the framework of *People v De Bour*, 40 NY2d 210 (1976), a request to exit the vehicle must rest on a reasonable suspicion of criminality, and the record shows none.

B. The Frisk Exceeded Any Permissible Scope

Even if the officer could lawfully order appellant out of the car, the frisk was not justified. A protective pat down requires an articulable belief that the person is armed and dangerous (*Terry*, 392 U.S. at 27). The officer testified only that appellant's hands were "moving around." He did not testify that he saw a bulge, a weapon, or any threatening gesture. (A 46.) The search of the passenger compartment followed from the unlawful frisk and cannot be sustained as a search incident to arrest, because the arrest itself was the product of the unlawful search.

The handgun must be suppressed, and the judgment must be reversed.

POINT II

COUNSEL WAS INEFFECTIVE FOR FAILING TO PURSUE THE DISPATCH CALL

Appellant was entitled to effective assistance of counsel at every stage. Under *Strickland v. Washington*, 466 U.S. 668, 687 (1984), a defendant must show that counsel's

is reasonable necessarily depends on the circumstances of the individual case. And the defense attorney is uniquely positioned to provide insight into the reasonableness of the time afforded.

A. Counsel Did Not Seek to Reopen the Hearing

20 minutes to accept or reject an enhanced sentence is patently unreasonable absent a contrary representation by counsel. The degree of unreasonableness is magnified here in the absence of any prejudice to the court or the People if more time had been given. The case had been dormant, pending sentencing for a year. The case adjourned for two weeks to schedule a trial date. A date for trial was put 8 months out from the date of the adjournment request. Supreme Court had no reason not to give appellant more time to consider the enhanced sentence.

B. The Omission Prejudiced Appellant

The abuse of discretion is magnified here where after appellant withdrew his plea, he tried to again enter a plea to criminally negligent homicide and accept the enhanced sentence Supreme Court mandated (A 30). The People would extend that offer (A 30). Supreme Court, however, without any explanation would not (A 30).

The need to have adequate time to discuss a plea bargain, particularly one involving jail time, is not novel. Based on conversations with counsel, appellant eventually sought to accept Supreme Court's enhanced sentence. Nothing justifies Supreme Court's rejection of appellant's request for the

POINT III

THE LATE DISCLOSURE VIOLATED BRADY, AND THE INTEREST OF JUSTICE WARRANTS RELIEF

A. The Dispatch Log Was Favorable and Material

The People must disclose evidence favorable to the defense that is material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The log was favorable because it called the officer's reason for the stop into question. It was material because the suppression ruling depended on that reason. Disclosure after the hearing closed came too late to be used at the hearing, which is a violation of the People's continuing duty.

B. In the Alternative, the Interest of Justice Requires a Reduction

Even if the suppression ruling is affirmed, this Court may reverse or modify a judgment in the interest of justice. CPL 470.15(6)(a). The second stop was contested on a single witness, an unrecorded traffic infraction, and a late disclosure that the defense never had a chance to test. Those features warrant relief as a matter of discretion, and the sentence should be reduced.

Whether an intervening cause exists, therefore, is not something a trial court should reject as a matter of law, except under the most apparent circumstances. Instead, the courts must entrust the issue to a jury to resolve.

In making that determination, the courts must view the evidence in the light most favorable to the defendant.

Despite appellant's request, Supreme Court refused to charge the jury regarding an intervening act. The issue is not whether, on this record, the People disproved the existence of an intervening act. Rather, the issue is whether Supreme Court, viewing the evidence in the light most favorable to the defense, should have charged the jury on intervening cause. Under *Stewart* and *Duffy*, appellant was entitled to that charge. The failure to charge the jury accordingly, shifted the determination of a factual issue to the prerogative of the trial court, thereby depriving appellant of a fair trial.

CONCLUSION

CONCLUSION

FOR THE REASONS STATED ABOVE, APPELLANT'S JUDGMENT SHOULD BE REVERSED. ALTERNATIVELY, APPELLANT'S SENTENCE SHOULD BE REDUCED.

For these reasons, the judgment of conviction should be reversed and the handgun suppressed. In the alternative, the Court should reverse for a new suppression hearing or, in the interest of justice, reduce the sentence.

Respectfully submitted,

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October 1, 2026

RESPECTFULLY SUBMITTED,

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Dated: March 29, 2024

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PRINTING SPECIFICATIONS STATEMENT

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Pursuant to 22 NYCRR § 1250.8[j]

This brief was prepared on a computer. A proportionally spaced typeface was used, as follows:

Name of typeface: Times New Roman

Point size: 14

Spacing: Double

The total number of words in the brief, inclusive of point headings and footnotes and exclusive of pages containing the table of contents, table of citations, proof of service, certificate of compliance or any authorized addendum containing statutes, rules, regulations, etc. is 18,641.

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